UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF GEORGIA
ATLANTA DIVISION

MICHAEL E. SULLIVAN, JR., Plaintiff, v. W. MICHAEL MALOOF, JR., d/b/a THE MALOOF LAW FIRM, Defendant.	Civil Action No.: **1:25-cv-02006-JPB**

DEFENDANT'S OPPOSITION TO PLAINTIFF'S MOTION FOR LEAVE TO AMEND COMPLAINT

Defendant W. Michael Maloof, Jr. ("Defendant") submits this brief in opposition to Plaintiff's Motion for Leave to File First Amended Complaint (Doc. 29).

INTRODUCTION

The Court should deny Plaintiff's motion because it would force Defendant to waste thousands of dollars in legal fees responding to a 399-paragraph amended complaint on the eve of a scheduled mediation—resources that can and should be spent settling this case. Indeed, Plaintiff's primary justification for filing this motion is "[t]o facilitate the productive, merits-focused mediation scheduled for October 30, 2025," but that is precisely why the magistrate-judge mediator has already ordered the Parties to submit mediation briefs that contain a "concise, factual, non-argumentative recitation of the evidence" and "an honest, introspective assessment" of the case. (Doc.

24.) Because granting Plaintiff's motion now would be sharply counterproductive to settling this case through mediation, the Court should either deny it without prejudice or, if granted, set Defendant's deadline to respond to the amended complaint to 14 days after the conclusion of mediation (if such mediation is unsuccessful).

RELEVANT PROCEDURAL BACKGROUND

Plaintiff filed this case on April 11, 2025. (Doc. 1.) His complaint consists of 167 paragraphs of allegations, nine causes of action, and references to 43 exhibits. (*See generally id.*) Shortly after Plaintiff filed suit, Defendant offered to settle this case for $50,000, which Plaintiff did not accept. (Doc. 9 at 6–11.) Defendant subsequently requested that the Court order mediation. (Doc. 20 at 12–14.[1]) Specifically, in the Parties Joint Preliminary Report and Discovery Plan, Defendant explained:

> Defendant believes that this matter would benefit greatly from court-ordered mediation . . . . Defendant remains ready, willing, and able to settle this case for a sum that, by his estimation, would more than reimburse Plaintiff for any allegedly unpaid wages and other damages . . . . [Thus, court-ordered mediation would likely] result in an early settlement that would save the Parties and the Court considerable time and resources.

[1] All page-number citations refer to the page number contained in the CM/ECF heading at the top of each filing.

(*Id.*) Indeed, a major motivator of Defendant seeking court-ordered mediation was to "avoid[] months of litigation and the unnecessary expense of the Parties and the Court's resources." (*Id.* at 14.)

On July 31, 2025, the Court ordered mediation and a stay of the discovery period pending the completion of mediation. (Doc. 22.) The Court assigned Magistrate Judge Regina D. Cannon as mediator, and she ordered that each party submit a confidential mediation brief by October 23, 2025, which must contain "a concise, factual, non-argumentative recitation of the evidence that the party expects to produce at trial, together with the theory of recovery or defense," along with "an honest, introspective assessment of the strengths and weaknesses of the case." (Doc. 24 at 2–3.) Mediation is set to conclude on October 30, 2025. (*Id.* at 1.)

On August 12, 2025, Plaintiff emailed Defendant's counsel seeking Defendant's consent for him to file an amended complaint. A true and correct copy of that email correspondence is attached hereto as **Exhibit A**. Plaintiff claimed that his motivation in amending the complaint was to "clarify the factual allegations; streamline the legal claims; and render moot [Defendant's] pending Motion to strike." (Ex. A (cleaned up).) Defendant responded:

> Defendant will consent and stipulate to your amendment of the complaint, provided that you stipulate to extend the deadline for Defendant to answer or respond to the complaint until 14 days after the conclusion of the mediation (if such mediation is unsuccessful). This approach will accomplish your stated goals in

> amending the complaint while sparing Defendant the cost of preparing a response that may become moot if mediation results in settlement.

(*Id.*)

Plaintiff did not respond to Defendant's counsel's proposal and instead filed the instant motion without further conferral. (Doc. 29.) Plaintiff's motion seeks to file a First Amended Complaint ("FAC") that contains 399 paragraphs of allegations and attaches 54 exhibits. (Doc. 29-1.) The proposed amended complaint and its exhibits total over 220 pages. (*Id.*)

ARGUMENT

Moving to amend a pleading after the deadline in the Court's Scheduling Order is effectively a motion to amend the Court's Scheduling Order. *S. Grouts & Mortars, Inc. v. 3M Co.*, 575 F.3d 1235, 1241 (11th Cir. 2009); *Sosa v. Airprint Sys.*, 133 F.3d 1417, 1418 n. 2 (11th Cir.1998). The Scheduling Order "may be modified only for good cause and with the judge's consent." Fed. R. Civ. P. 16(b)(4).[2]

Defendant does not oppose Plaintiff's proposed amendment in principle; rather, Defendant objects to the timing as counterproductive to mediation and

[2] Plaintiff has conceded that he files this motion after the deadline set by the Court. (Doc. 29 at 3 (acknowledging that the motion is brought beyond the deadline measured by when the Joint Preliminary Report and Discovery Plan "should have been filed"); *see also* Ex. A (recognizing his deadline to seek amendment as August 15, 2025).)

an extraordinary waste of Defendant's and the Court's resources. Specifically, Plaintiff files this motion around two months before the scheduled mediation. (*Compare* Doc. 29, *with* Doc. 24.) If the Court grants Plaintiff's motion, Defendant's deadline to answer or otherwise respond to the FAC will be October 10 at the earliest, less than two weeks before the Parties' mediation briefs are due.[3] Fed. R. Civ. P 15(a)(3). Defendant estimates that it will cost *thousands* of dollars in legal fees to properly review, analyze, and respond to the 399-paragraph complaint, which, again, attaches over 50 exhibits totaling over 200 pages. (Doc. 29, 29-1.) Those resources should be spent on mediation, not on potentially moot pleadings.

The case *St. Claire v. Ditech Fin., LLC* is instructive here. No. 1:17-CV-3370-AT, 2018 WL 8459491, at *1 (N.D. Ga. Oct. 23, 2018). In *St. Claire*, like here, the court "ordered the parties to attend mediation with a magistrate judge of this Court." *Id.* The court also stayed the case pending the outcome of the mediation. *Id.* Soon after, the *pro se* plaintiff filed a motion asking the court to lift the stay and grant leave to amend her complaint. *Id.* Like Plaintiff here, the *St. Claire* plaintiff argued that allowing her to amend her complaint prior to mediation would help "facilitate the potential settlement . . . ." *Id.* The defendant opposed the motion, stating, like here, that Defendant "intend[ed]

[3] This assumes Plaintiff files a reply in support of his motion on the deadline (September 25), and the Court grants it the following day. *See* Local Rule 7.1(C).

to work in good faith towards a full and fair resolution of this matter through mediation," and that responding to the motion would waste valuable time and resources in light of scheduled mediation. *Id.* at *2; N.D. Ga. CM/ECF No. 1:17-cv-03370-AT, Doc. 36 at 2. The court denied the plaintiff's motion "[b]ased on Defendant's express representations that it will engage in settlement negotiations before the Magistrate Judge in good faith." *Id.* at *2 & n.3. The Court should reach the same conclusion here, as Defendant has repeatedly reiterated his intent to negotiate in good faith and settle this case, and allowing Plaintiff to file his proposed FAC will undermine that goal.

Plaintiff's arguments to the contrary are unpersuasive. First, Plaintiff argues that amendment is necessary "[t]o facilitate the productive, merits-focused mediation scheduled for October 30, 2025" and to "sharpen the issues for mediation." (Doc. 29 at 1–2, 6.) This is not a good reason to allow amendment at this time because Magistrate Judge Cannon has already ordered the Parties submit mediation briefs for precisely this purpose. (*See* Doc. 24.) Indeed, if Plaintiff's motion were granted, Defendant would be forced to respond to the FAC *and* prepare his mediation brief in the same month, purportedly for the same purpose.

Second, Plaintiff argues that Defendant is not prejudiced by his request because (1) Defendant consented to the amendment under the condition that he would not be required to respond until after mediation; and (2) Defendant

had notice of Plaintiff's intent to file the amended complaint. (Doc. 29 at 3–4.) These arguments miss the mark because Defendant's only objection to Plaintiff's motion is its timing. Defendant made that clear in conferrals with Plaintiff (*see* Ex. A). Notably, despite Defendant's counsel telling Plaintiff that Defendant wished to be "spar[ed] . . . the cost of preparing a response that may become moot if mediation results in settlement," Plaintiff provides no justification whatsoever for forcing Defendant to respond to his 399-paragraph FAC prior to mediation. (*See generally* Doc. 29.)

CONCLUSION

Defendant respectfully requests that the Court deny Plaintiff's motion without prejudice, to be renewed after mediation (if it is unsuccessful). Alternatively, if the Court grants the motion, Defendant requests an extension of time to respond, *i.e.*, 14 days after the conclusion of mediation (if unsuccessful).

Respectfully submitted, September 11, 2025.

/s/ Chadwick L. Williams

Chadwick L. Williams
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171 17th Street NW, Ste 1550
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404-400-7306
Fax: 404-400-7333

Email: cwilliams@kcozlaw.com

Attorney for Defendant

RULE 7.1(D) CERTIFICATE OF COMPLIANCE

The undersigned counsel certifies that this document has been prepared with one of the font and point selections approved by the Court in Local Rule 5.1(C).

Dated: September 11, 2025.

/s/ Chadwick L. Williams
Chadwick L. Williams

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on September 11, 2025, a copy of the foregoing was served upon Plaintiff *pro se* via electronic mail and U.S. mail to the following:

Michael E. Sullivan, Jr.
3324 Peachtree Road NE, Unit 1405
Atlanta, Georgia 30326
msullivanjr@gmail.com

/s/ Chadwick L. Williams
Chadwick L. Williams

Exhibit A

Subject: Re: [External] Sullivan v Maloof; 1:25-cv-02006-JPB; First Amended Complaint & Conferral Under LR 7.1
Date: Wednesday, August 13, 2025 at 2:20:04 PM Eastern Daylight Time
From: Chad Williams
To: Mike Sullivan
Category: Filed to ND
Attachments: image.gif

Mike,

Defendant will consent and stipulate to your amendment of the complaint, provided that you stipulate to extend the deadline for Defendant to answer or respond to the complaint until 14 days after the conclusion of the mediation (if such mediation is unsuccessful).

This approach will accomplish your stated goals in amending the complaint while sparing Defendant the cost of preparing a response that may become moot if mediation results in a settlement. *See, e.g.*, Local Rule 16.7(A) (explaining that the purpose of ADR is to provide "savings in time and costs to litigants and to the Court").

Best,

Chadwick L. Williams
KABAT CHAPMAN & OZMER LLP
171 17th Street NW
Suite 1550
Atlanta, Georgia 30363
Direct: (404) 400-7306
Email: cwilliams@kcozlaw.com
www.kcozlaw.com

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From: Mike Sullivan <msullivanjr@gmail.com>
Date: Tuesday, August 12, 2025 at 4:13 PM
To: Chad Williams <CWilliams@kcozlaw.com>
Subject: Re: [External] Sullivan v Maloof; 1:25-cv-02006-JPB; First Amended Complaint & Conferral Under LR 7.1

Chad,

Yes, that works. Thank you for the prompt response.

Sincerely,

Michael E. Sullivan, Jr.,

Plaintiff *pro se*
3324 Peachtree Road NE, Unit 1405
Atlanta, GA 30326
(678) 372-3000
msullivanjr@gmail.com

On Tue, Aug 12, 2025 at 4:07 PM Chad Williams <CWilliams@kcozlaw.com> wrote:

> Thanks, Mike. I'm out of the office today and I should be able to get back to you by EOD tomorrow. Does that work?
>
> **Chadwick L. Williams**
> KABAT CHAPMAN & OZMER LLP
> 171 17th Street NW
> Suite 1550
> Atlanta, Georgia 30363
> Direct: (404) 400-7306
> Email: cwilliams@kcozlaw.com
> www.kcozlaw.com
>
> This email message is for the sole use of the intended recipient(s) and may contain confidential and privileged information. Any unauthorized review, use, disclosure or distribution is prohibited. If you are not the intended recipient, please contact the sender by reply email and destroy all copies of the original message.
>
> ---
>
> **From:** Mike Sullivan <msullivanjr@gmail.com>
> **Sent:** Tuesday, August 12, 2025 3:47 PM
> **To:** Chad Williams <CWilliams@kcozlaw.com>
> **Subject:** [External] Sullivan v Maloof; 1:25-cv-02006-JPB; First Amended Complaint & Conferral Under LR 7.1
>
> Dear Chad,
>
> I hope this email finds you well.
>
> Pursuant to Local Rule 7.1, I am writing to confer before filing a Motion for Leave to File a First Amended Complaint. As both parties acknowledged in the JPRDP [Doc. 20, § 6(a)], this is a procedural step I have anticipated taking.
>
> The purpose of the amendment is to promote an efficient and focused mediation on October 30. The proposed Amended Complaint will:
>
> - Clarify the factual allegations;
> - Streamline the legal claims; and
> - Render moot your pending Motion to Strike [Doc. 5].

These changes will allow both parties and the mediator to proceed with a clean, operative pleading focused entirely on the merits.

In that spirit, I propose the following mutual accommodation: in exchange for your consent to the filing of the First Amended Complaint, I will stipulate to extending your response deadline to thirty (30) days from the date it is filed.

The court-imposed deadline for amendments is this Friday, August 15 (see LR, NDGa, App. B, Form II, § 6(b): *"Amendments to the pleadings submitted LATER THAN THIRTY DAYS after the Joint Preliminary Report and Discovery Plan is filed, or should have been filed, will not be accepted for filing, unless otherwise permitted by law."*). Calculated from the July 16 JPRDP due date, this deadline necessitates a prompt turnaround.

Accordingly, if this framework is agreeable in principle, please let me know by 5:00 PM tomorrow (Wednesday, August 13). I will then provide the proposed First Amended Complaint for your review by 5:00 PM Thursday (August 14). I would then ask for your final decision on consent by Noon on Friday (August 15), which will allow me time to file either a joint stipulation or the necessary motion before the deadline that afternoon.

Granting consent will avoid the time and expense of briefing and ensure that both parties and the mediator have a single, up-to-date pleading to work from. I believe this collaborative approach is the most efficient way to meet the deadline and best serves the Court's directive to prepare for mediation.

Sincerely,

Michael E. Sullivan, Jr.,
Plaintiff *pro se*
3324 Peachtree Road NE, Unit 1405
Atlanta, GA 30326
(678) 372-3000
msullivanjr@gmail.com